

Mermaidalay

Online Rental Agreement & Liability Waiver

Customer Information

Name: _____

Phone: _____

Email: _____

Event Address: _____

Event Date: _____

Agreement

By signing this Agreement, I confirm that I am at least 18 years old and have the authority to rent this equipment. If children participate, I certify that I am their parent or legal guardian or have permission to sign on their behalf.

I understand that the use of Mermaidalay's inflatable pools, mermaid tails, accessories, and water activities involves inherent risks, including slips, falls, drowning, property damage, serious injury, permanent disability, or death. I voluntarily assume all risks associated with the use of the rental equipment.

I agree that:

- Adult supervision is required at all times.
- Mermaidalay does not provide lifeguards or childcare.
- All participants must follow the posted safety rules.
- No diving, rough play, climbing, glass containers, alcohol, smoking, pets, or sharp objects are permitted.
- The equipment will not be moved, altered, or misused after installation.
- The equipment will not be used during high winds, lightning, or other unsafe weather conditions.

I accept the equipment in good condition and agree to return it in the same condition, excluding normal wear and tear. I understand that I am responsible for any damage caused by negligence, misuse, pets, sharp objects, burns, vandalism, or failure to follow the safety rules.

To the fullest extent permitted by California law, I release and hold harmless **Mermaidalay**, its owners, employees, contractors, affiliates, and agents from any claims, injuries, damages, losses, costs, or liabilities

arising from the use of the rental equipment, except those resulting from gross negligence or willful misconduct.

I agree to indemnify and defend Mermaidalay against any claims arising from my event or the actions of my guests or participants.

I understand that Mermaidalay may postpone or cancel a rental due to unsafe weather or hazardous site conditions.

Optional Photo & Video Release

☐ **Yes**, I authorize Mermaidalay to use photos and videos from my event for promotional, advertising, and social media purposes.

☐ **No**, I do not authorize the use of photos or videos.

Electronic Signature

By checking the box below and signing electronically, I acknowledge that I have read, understood, and agree to this Rental Agreement, Liability Waiver, Assumption of Risk, and Release of Liability. I understand that my electronic signature has the same legal effect as a handwritten signature.

☐ **I have read and agree to the terms and conditions of this Agreement.**

Printed Name: _____

Electronic Signature: _____

Date: _____